

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #

Date of filing:

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BRIAN CLARKE and ALMARIE CLARKE,

Plaintiffs designate
Kings County as the
place of trial

Plaintiffs,

Basis of the venue is
Plaintiffs' Residence

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and POLICE
OFFICER EMILIO LABOY.

SUMMONS

Defendants.

Plaintiffs reside at:
2749 W. 33rd Street
Brooklyn, NY 11224
County of Kings

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

PLAINTIFF'S ATTORNEYS:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

THE NEW YORK CITY POLICE
DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER EMILIO LABOY
84th Precinct
301 Gold Street
Brooklyn, NY 11201

Dated: Brooklyn, New York
September 8, 2017

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
BRIAN CLARKE and ALMARIE CLARKE,

Index No.:

Plaintiffs,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT and POLICE
OFFICER EMILIO LABOY.Defendants.
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Plaintiffs, BRIAN CLARKE and ALMARIE CLARKE, by their attorneys,
RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information
and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF BRIAN CLARKE**

1. That at all times hereinafter mentioned, plaintiffs were and still are residents of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on December 19, 2016, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than (30) days and up to the commencement of this action to make

any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on February 27, 2017, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

6. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER LABOY, as agent, servant and/or employee.

7. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BRIAN CLARKE, was lawfully present at the 84th Precinct located at 320 Schermerhorn Street, County of Kings, City and State of New York.

8. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BRIAN CLARKE, was assaulted and battered by POLICE OFFICER LABOY, who was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

9. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief the defendant, POLICE OFFICER LABOY, who committed the aforementioned assault and battery upon the plaintiff, BRIAN CLARKE, was acting within the scope of his employment with the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

11. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON BEHALF OF BRIAN CLARKE**

14. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "13" inclusive with the same force and effect as if more fully set forth at length herein.

15. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendant, POLICE OFFICER LABOY, who assaulted, battered and violated the civil rights of the plaintiff, BRIAN CLARKE.

16. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendant, POLICE OFFICER LABOY, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF BRIAN CLARKE**

18. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "17" inclusive with the same force and effect as if more fully set forth at length herein.

19. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER LABOY, was working within the scope of his employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when he arrested and confined the plaintiff, BRIAN CLARKE.

20. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, BRIAN CLARKE, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF BRIAN CLARKE**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. That on November 26, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER LABOY, was acting within the scope of his employment when he, without justification and without probable cause, imprisoned the plaintiff.

25. That defendant, POLICE OFFICER LABOY, while acting within the scope of his employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF BRIAN CLARKE**

27. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "26" inclusive with the same force and effect as if more fully set forth at length herein.

28. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER LABOY, was acting under the color of law and within the scope of his authority, assaulted and battered the plaintiff BRIAN CLARKE, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

29. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER LABOY, acting under color of law and within the scope of his authority, deprived the plaintiff, BRIAN CLARKE of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

30. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

31. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

32. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER LABOY, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

33. That the defendants' actions were not privileged or immune.

34. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER LABOY, was not acting with immunity when they deprived plaintiff of his civil rights.

35. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF BRIAN CLARKE**

36. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "35" inclusive with the same force and effect as if more fully set forth at length herein.

37. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

38. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendant, POLICE OFFICER LABOY, herein-above alleged.

39. By the reason of the foregoing, the plaintiff, BRIAN CLARKE, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ALMARIE CLARKE

40. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "39" herein, as though more fully set forth herein at length.

41. That at all times hereinafter mentioned, the plaintiff, ALMARIE CLARKE, was the lawful spouse of the plaintiff, BRIAN CLARKE, and as such plaintiff, ALMARIE CLARKE, was entitled to the society and services of the plaintiff, BRIAN CLARKE.

42. By reason of the afore-described negligence of the defendants, the plaintiff, ALMARIE CLARKE, was deprived of the society and services of the plaintiff, BRIAN CLARKE, and shall forever be deprived of said society and services.

43. As a result of the afore-described negligence, the plaintiff, ALMARIE CLARKE, expended diverse sums of money in payment of the expenses incurred for

WHEREFORE, plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount

exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; plaintiff, BRIAN CLARKE, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action; ALMARIE CLARKE, demand judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the Seventh Cause of Action; together with attorneys' fees and the costs and disbursements of this action.

DATED: Brooklyn, New York
September 8, 2017


Yours, etc.,

SCOTT RYNECKI
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.
DATED: Brooklyn, New York
September 8, 2017



Scott Rynecki